

नगर निगम गुरुग्राम
Municipal Corporation Gurugram

Civil Lines, Gurugram - 122001, Haryana | Helpline 0124-2322877 | www.mcg.gov.in
Building Violation Management System



F3VVE3HQLPWJ

No. MCG/BV/SCN/2026-27/000001
Case MCG/BV/Z3/2026-27/000001

Dated 10-09-2026
Zone/Ward 3 / 19

HMCA1994 s.261(1)
NOTICE

SHOW CAUSE NOTICE UNDER SECTION 261(1) PROVISO (WHY THE
UNAUTHORISED ERECTION/WORK SHOULD NOT BE DEMOLISHED)
धारा 261(1) के परंतुक के अंतर्गत कारण बताओ नोटिस

To / सेवा में	Ramesh Kumar H.No. 123, Sector 14 Mobile: 9811100001
Property / संपत्ति	PID GGN012345 , H.No. 123, Sector 14, Sector 14 Location: 28.47, 77.045 (Land vested in MCG)
Sanctioned plan	MCG/BP/2025/00412 dated 12-06-2025
Inspection / निरीक्षण	10-09-2026 22:35 by the field team of the Corporation; construction stage: Under construction; storeys: S+4; covered area approx. 210 sq m

Code	Violation / उल्लंघन	Contravention of / प्रावधान
DV-03	Floor Area Ratio (FAR) / additional floor beyond permissible अनुमेय से अधिक एफ.ए.आर. / अतिरिक्त मंज़िल	Code 6.3 (FAR) of the Haryana Building Code, 2017 read with section 255(2) of the Haryana Municipal Corporation Act, 1994
DV-04	Violation of front / side / rear setbacks आगे / बगल / पीछे के सेटबैक का उल्लंघन	Code 6.3 (setbacks) of the Haryana Building Code, 2017 read with sections 255(2) and 263 of the Haryana Municipal Corporation Act, 1994

Observations / निरीक्षण टिप्पणी: Fourth floor being raised over sanctioned S+3; rear setback covered with rooms.

Measurements: floors_permitted: S+3; floors_actual: S+4; rear_setback_required_m: 3; rear_setback_actual_m: 0.6;

WHEREAS the field inspection of the property described above has revealed that the erection of the building / execution of the work noted above has been commenced / is being carried on / has been completed **without or contrary to the sanction referred to in section 254** of the Haryana Municipal Corporation Act, 1994, or in contravention of the conditions of sanction / the provisions of the Act, the Haryana Building Code, 2017 and the bye-laws made thereunder, as detailed in the table of violations above;

AND WHEREAS the said erection / work is liable to be demolished under section 261(1) of the Act at your cost and you are also liable to prosecution under section 380 read with the Third Schedule of the Act (fine up to Rs 5,000 with Rs 500 per day of continuing contravention under s.250, and Rs 2,000 with Rs 200 per day under s.261/262);

NOW THEREFORE, in exercise of the powers conferred by the first proviso to section 261(1) of the Haryana Municipal Corporation Act, 1994, you are hereby called upon to **show cause in writing within 7 days of the service of this notice (on or before 17-09-2026)** as to why an order directing demolition of the unauthorised erection / work should not be made against you.

You are further directed under the second proviso to section 261(1) read with section 262(1) of the Act to **STOP forthwith** any further erection / work at the site pending disposal of this notice. Non-compliance will attract removal of workmen through the police under section 262(2), sealing of the premises under section 263A and prosecution under section 380 of the Act and section 223 of the Bharatiya Nyaya Sanhita, 2023.

If no reply is received within the period aforesaid, it will be presumed that you have nothing to say in the matter and an order under section 261(1) will be passed ex parte on the basis of the record.

अतः हरियाणा नगर निगम अधिनियम, 1994 की धारा 261(1) के प्रथम परंतुक के अंतर्गत आपको निर्देश दिया जाता है कि इस नोटिस की तामील के 7 दिनों के भीतर (17-09-2026 तक) लिखित रूप में कारण बताएँ कि उपरोक्त अनधिकृत निर्माण को ध्वस्त करने का आदेश आपके विरुद्ध क्यों न पारित किया जाए। साथ ही धारा 262(1) के अंतर्गत आपको तत्काल निर्माण कार्य रोकने का निर्देश दिया जाता है। निर्धारित अवधि में उत्तर न मिलने पर अभिलेख के आधार पर एकपक्षीय आदेश पारित किया जाएगा।

Reply may be filed at the office of the undersigned or handed to the field officer serving this notice, who will upload it in the system. This notice has also been sent by SMS to the mobile number linked to the Property ID.

Verification: Scan the QR code or visit
<http://localhost:5173/building-violations/verify/F3VVE3HQLPWJ>
Document hash (SHA-256):
545a1197b5024d9854f9debff7faa6b0...
This document is digitally signed under the Information Technology Act, 2000 and is valid without a physical signature (s.402, HMC Act 1994).

Vishal Kumar
Joint Commissioner, Zones 2-4
Municipal Corporation Gurugram
Exercising powers of the Commissioner delegated vide order No. MCG/Comm/Delegation/2026/114 dated 01-04-2026 u/s 401(2), HMC Act 1994

Copy to: (1) Junior Engineer / field team for service and report (2) Assistant Engineer, Zone 3 (3) Case file MCG/BV/Z3/2026-27/000001 (4) SHO, Police Station concerned - for information and assistance u/s 262(2)

Statutory provisions referred to / संदर्भित वैधानिक प्रावधान

Haryana Building Code, 2017, s.6.3 - Proportion of the site which may be covered with buildings (ground coverage, FAR, height, setbacks): The proportions of covered area of a building, including ancillary buildings, shall be in accordance with the plot categories given in the sub-Codes and the remaining portion shall be left open in the form of open space around the building. ... The stilts are permitted for parking purposes in residential and commercial plots of all sizes, subject to the condition that maximum permissible height of building shall not exceed 15 metres. ... Any violation of the permissible ground coverage limit as indicated in the table shall be non-compoundable.

Haryana Municipal Corporation Act, 1994, s.255(2) - Obligation to build in accordance with sanction: Where a building or work is sanctioned or is deemed to have been sanctioned by the Commissioner under sub-section (1), the person who has given the notice shall be bound to erect the building or execute the work in accordance with such sanction but not so as to contravene any of the provisions of this Act or any other law or of any bye-law made thereunder.

Haryana Municipal Corporation Act, 1994, s.261(1) - Order of demolition and stoppage of building and works in certain cases - show cause and demolition order: Where the erection of any work has been commenced, or is being carried on or has been completed without or contrary to the sanction referred to in section 254 or in contravention of any condition subject to which such sanction has been accorded or in contravention of any of the provisions of this Act, or bye-laws made thereunder, the Commissioner may in addition to any other action that may be taken under this Act, make an order directing that such erection or work shall be demolished by the person at whose instance the erection or work has been commenced or is being carried on or has been completed within such period (not being less than three days from the date on which copy of the order of demolition with a brief statement of the reasons therefor has been delivered to that person) as may be specified in the order of demolition: Provided that no order of demolition shall be made unless...

Haryana Municipal Corporation Act, 1994, s.263 - Power of Commissioner to require alteration of work: (1) The Commissioner may, at any time during the erection of any building or execution of any work or at any time within three months after the completion thereof, by a written notice specify any matter in respect of which such erection or execution is without or contrary to the sanction referred to in section 254 or is in contravention of any condition of such sanction or any of the provisions of this Act or any bye-laws made thereunder and require the person who gave the notice under section 251 or section 252 or the owner of such building or work either- (a) to make such alterations as may be specified in the said notice with the object of bringing the building

or work in conformity with the said sanction, condition or provisions; or (b) to show cause why such alterations should not be made within the period stated in the notice. (2) If the person or the owner does not show cause as ...

Haryana Municipal Corporation Act, 1994, s.263A(1) - Power to seal premises: The Commissioner may, at any time, before or after making an order under section 261 or 262 may order to seal the premises.